

Identifying a risk assessed role

Registered NDIS providers are responsible for identifying which roles are risk assessed roles, and ensuring all workers in these roles have an NDIS worker screening clearance or an acceptable check under the transitional and special arrangements.

A risk assessed role:

- is a key personnel role of a person or an entity as defined in s 11A of the *National Disability Insurance Scheme Act 2013* (for example, a CEO or a Board Member)
- involves the direct delivery of specified supports or services to a person with disability
- is likely to require 'more than incidental contact' with people with disability, which includes:
 - physically touching a person with disability; or
 - building a rapport with a person with disability as an integral and ordinary part of the performance of normal duties; or
 - having contact with multiple people with disability as part of the direct delivery of a specialist disability support or service, or in a specialist disability accommodation setting.

For the purposes of determining whether the normal duties of a role will require more than incidental contact with a person with disability, contact includes physical contact, face-to-face contact, oral communication, written communication and electronic communication.

Registered NDIS providers will not be required to ensure that workers who do not work in risk assessed roles have an NDIS worker screening clearance or an acceptable check under the transitional and special arrangements. However, an NDIS provider or self-managed participant may, as a safety measure, choose to require a worker to have an NDIS worker screening clearance, or to have an acceptable check under the transitional and special arrangements, prior to engaging that worker in a role that is not a risk assessed role.

Example 1

Lee works for a registered NDIS provider that delivers mobility equipment to the homes of people with disability. As a standard part of that role, he provides training and instructions to the customer about how to use the equipment safely and makes adjustments to the equipment to make it suitable for the customer. The provider will have to ensure that Lee has an NDIS worker screening clearance (or an acceptable check under the transitional and special arrangements) because his role is likely to require more than incidental contact. This is because Lee has contact with people with disability and the nature of that contact (such as testing the person's needs and preferences with them, talking about and responding to the nature of their disability) means that there is a level of openness and trust that is likely to lead Lee building rapport with his customers.

Example 2

Sue is an accountant who works in the back office of a registered NDIS provider that supplies custom prosthetics to people with disability. Sue often has coincidental contact with people with disability while she is moving through public areas of the business, such as when she walks through the lobby, at which time Sue nods and says hello to the customers. The provider does not have to ensure that Sue has an NDIS worker screening clearance (or an acceptable check under the transitional and special arrangements) because her role does not involve the direct delivery of custom prosthetics, and she is not required to have more than incidental contact with people with disability. This is because the duties of her role do not require her to have more than polite, functional contact with people with disability, or to get to know them in any way.